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statutes must provide notice. Yet the court holds that these requirements weren't—themselves—clearly established.

I understand the impulse. After all, qualified immunity is supposed to protect “all but the plainly incompetent or those who knowingly violate the law”—that's what the Supreme Court remarked in *Wesby*.<sup>47</sup> So if reasonably competent officers wouldn't necessarily know that they're violating the law, they shouldn't be liable. For example, the majority says that since we haven't yet enforced the limited-discretion requirement, reasonable officials could've thought that the subpoena satisfied *Burger*. Thus, they wouldn't necessarily realize they're breaking the law.

But that hyperspecific take snubs the Supreme Court's time-worn test: Was there a clearly established violation?<sup>48</sup> Yes, it's a violation to conduct a warrantless search without precompliance review. Sometimes there's an exception to this test. But not here. No exception applies. And it's only when an exception applies that the general rule doesn't.

## B

Yet even if we should ask whether the *Burger* exception was clearly established, Dr. Zadeh still ought to win. Controlling law dictates that there must be statutory notice.

Recall *Beck*. In that case, the law authorized on-demand, warrantless searches. And so we upheld the search.<sup>49</sup> Don't forget *Fort*<sup>50</sup> or *Club Retro*<sup>51</sup> either, in which we similarly enforced the notice requirement. Then of course there's *Burger* itself. In upholding a warrantless search, the Supreme Court

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<sup>47</sup> 138 S. Ct. at 589 (quoting *Malley v. Briggs*, 475 U.S. 335, 341 (1986)).

<sup>48</sup> See discussion *infra* Section III.

<sup>49</sup> 204 F.3d at 639.

<sup>50</sup> 248 F.3d at 482.

<sup>51</sup> 568 F.3d at 200.

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emphasized that the statute “set[] forth the scope of the inspection and, accordingly, place[d] the operator on notice as to how to comply with the statute.”<sup>52</sup>

Those cases control. They require statutory notice. So the *Burger* exception’s notice element is clearly established. And the Texas laws don’t provide notice for on-demand inspections.

For that reason, the limited-discretion requirement shouldn’t matter. The notice requirement would govern. No matter how you shake it, the officials shouldn’t be immune.

## III

Yet here we are—Dr. Zadeh still loses; there and back again. Everyone agrees his Fourth Amendment rights were violated. But owing to a legal *deus ex machina*—the “clearly established” prong of qualified-immunity analysis—the violation eludes vindication. At first I agreed with the panel majority that the government violated the law but not *clearly established* law. I was wrong. Beyond this case, though, I must restate my broader unease with the real-world functioning of modern immunity practice.

To some observers, qualified immunity smacks of unqualified impunity, letting public officials duck consequences for bad behavior—no matter how palpably unreasonable—as long as they were the *first* to behave badly. Merely proving a constitutional deprivation doesn’t cut it; plaintiffs must cite functionally identical precedent that places the legal question “beyond debate” to “every” reasonable officer.<sup>53</sup> Put differently, it’s immaterial that someone acts unconstitutionally if no prior case held such misconduct unlawful. This

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<sup>52</sup> 482 U.S. at 711.

<sup>53</sup> *Ashcroft*, 563 U.S. at 741; *see also, e.g., Kisela v. Hughes*, 138 S. Ct. 1148, 1153 (2018) (per curiam); *Mullenix v. Luna*, 136 S. Ct. 305, 308 (2015) (per curiam).

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current “yes harm, no foul” imbalance leaves victims violated but not vindicated. Wrongs are not righted, and wrongdoers are not reproached.

Today the majority opinion says Dr. Zadeh loses because his rights weren’t clearly established. But courts of appeals are divided—intractably—over precisely what degree of factual similarity must exist. How indistinguishable must existing precedent be? On the one hand, the Supreme Court reassures plaintiffs that its caselaw “does not require a case directly on point for a right to be clearly established.”<sup>54</sup> On the other hand, the Court admonishes that “clearly established law must be ‘particularized’ to the facts of the case.”<sup>55</sup> How to square these abstract instructions? Take Dr. Zadeh. Effectively, he loses since no previous panel has ever held this exact sort of search unconstitutional. In day-to-day practice, the “clearly established” standard is neither clear nor established among our Nation’s lower courts.

Two other factors perpetuate perplexity over “clearly established law.” First, many courts grant immunity without first determining whether the challenged behavior violates the Constitution.<sup>56</sup> They avoid scrutinizing the alleged offense by skipping to the simpler second prong: no factually analogous precedent. Forgoing a knotty constitutional inquiry makes for easier sledding, no doubt. But the inexorable result is “constitutional stagnation”<sup>57</sup>—fewer courts establishing law at all, much less *clearly* doing so. Section 1983 meets Catch-22. Plaintiffs must produce precedent even as fewer courts are

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<sup>54</sup> *Kisela*, 138 S. Ct. at 1152 (quoting *White v. Pauly*, 137 S. Ct. 548, 551 (2017)).

<sup>55</sup> *Pauly*, 137 S. Ct. at 552 (quoting *Anderson*, 483 U.S. at 640).

<sup>56</sup> *See Pearson v. Callahan*, 555 U.S. 223, 227 (2009).

<sup>57</sup> Aaron L. Nielson & Christopher J. Walker, *The New Qualified Immunity*, 89 S. CAL. L. REV. 1, 12 (2015) (“Because a great deal of constitutional litigation occurs in cases subject to qualified immunity, many rights potentially might *never* be clearly established should a court skip ahead to the question whether the law clearly established that the officer’s conduct was unlawful in the circumstances of the case. The danger, in short, is one of constitutional stagnation.” (cleaned up)).